

M/S U.S. Foods Private Limited And Another v. State of U.P. And Others

High Court of Judicature at Allahabad · Division Bench · 26 July 2017 · WRIT - C No. 31829 of 2017 · **Writ disposed; Executive Engineer to consider instalments under clause 6.14.**

HEADNOTE

Writ against recovery of electricity dues. The consumer offered to pay if granted time and instalments. The Division Bench extracted clause 6.14 of the Electricity Supply Code, 2005 (instalments for financial distress; no surcharge waiver; grant not below Executive Engineer) and disposed of the petition directing the consumer to approach the Executive Engineer, who shall pass an appropriate order on the instalment request within 15 days of receiving a certified copy.

FACTUAL SUMMARY

M/s U.S. Foods Private Limited and another filed a writ petition in the Allahabad High Court arising from recovery of electricity dues. Counsel submitted at the outset that the petitioners were prepared to deposit the amount if given breathing time and an instalment facility. The Court extracted clause 6.14 of the Electricity Supply Code, 2005, which permits the licensee to extend instalments to consumers in financial distress without waiving surcharge, and remitted the instalment request to the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

Where a consumer facing recovery of electricity dues seeks time and instalments, clause 6.14 of the Electricity Supply Code, 2005 supplies the procedure. The writ is disposed of by directing the consumer to approach the Executive Engineer, who shall on receipt of a certified copy within 15 days pass an appropriate order on the request for fixing instalments. ¶ 2

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court remitted the consumer's request for instalments of electricity dues to the Executive Engineer under clause 6.14 rather than granting instalments on the writ. ¶ 2

instalment-facility-clause-6.14-for-financial-distress The Court extracted clause 6.14, which confines the instalment facility to consumers in financial distress and bars waiver of surcharge, then left the request to the Executive Engineer. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALMENTS SHOULD BE GRANTED, AND IN WHAT NUMBER OR AMOUNT

Left to the Executive Engineer under clause 6.14; the Court neither granted nor refused instalments on merits. ¶ 2